

§ 342.2. Evidence in fact-finding hearings; required quantum. 1. Only evidence that is competent, material and relevant may be admitted at a fact-finding hearing.

2. Any determination at the conclusion of a fact-finding hearing that a respondent committed an act or acts which if committed by an adult would be a crime must be based on proof beyond a reasonable doubt.

3. An order of removal pursuant to a direction authorized by sections 220.10, 310.85 and 330.25 of the criminal procedure law constitutes proof beyond a reasonable doubt and a determination that the respondent did the act or acts specified therein in accordance with section 725.05 of the criminal procedure law.